

Court No. - 1

Case :- WRIT - C No. - 31167 of 2019

Petitioner :- Shashank Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh (Senior Adv.),Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri B.C.Rai, learned counsel for the petitioner, Sri Nagendra Pratap Singh, holding brief of Sri Amrendra Nath Singh, learned counsel appearing for respondent no.2, Sri Ravi Anand Agarwal, learned counsel or respondents no.3 & 4 and learned Standing Counsel for the State respondent.

By means of this writ petition under Article 226 of the Constitution of India, the petitioner has challenge the Electricity Supply Code 13th Amendment 2018 by the Regulatory Commission being ultravires to provision contained under the Electricity Act, 2003.

At the very outset, learned counsel for the parties agreed that this issue is already engaging attention of this Court of this Court in Writ C-No.4545 of 2019.

In view of the above, therefore, the order operating in the said writ petition may also be made operative in the present writ petition, however, with the rider that the petitioner shall charge the tariff as per the applicable tariff order only, from the occupants of flats of multistory towers against the consumption of electricity which is supplied through him by the licensee.

Let all the respondents file counter affidavit within a period of four weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

Connect and list with Writ-C No.4545 of 2019 (M/s. Maxblis Construction Pvt. Ltd. Vs. State of U.P. and 4 Others).

List immediately after expiry of the aforesaid period showing the name of Sri Sri Ravi Anand Agarwal, learned counsel or respondents no.3 & 4.

(Ajit Kumar,J.) (Ramesh Sinha, J.)

Order Date :- 25.9.2019/NS